

STATE OF NEW YORK

8872--A

2025-2026 Regular Sessions

IN ASSEMBLY

June 9, 2025

Introduced by M. of A. SOLAGES -- read once and referred to the Committee on Transportation -- recommitted to the Committee on Transportation in accordance with Assembly Rule 3, sec. 2 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the vehicle and traffic law and the transportation law, in relation to creating a plan to increase the availability of wheelchair accessible vehicles in New York state outside of the city of New York

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Legislative intent. This Legislature finds that no uniform
2 regulations exist across New York state outside of New York city which
3 define wheelchair accessible vehicles. Despite the need for mobility
4 services for the disabled population, substantive information on wheel-
5 chair accessible vehicle standards and the number of such vehicles
6 available does not exist in each county across New York state outside of
7 New York City.

8 As such, this Legislature finds that defining a wheelchair accessible
9 vehicle, creating a plan for wheelchair accessible vehicles, creating
10 benchmarks and granting support for counties across New York state other
11 than New York City, would allow for local authorities to make informed
12 policies to increase mobility transportation options for individuals who
13 are reliant on the use of a wheelchair accessible vehicle.

14 § 2. The vehicle and traffic law is amended by adding a new section
15 159-b to read as follows:

16 § 159-b. "Wheelchair accessible vehicle". A vehicle, including a taxi-
17 cab, that has been inspected and approved by the municipal or local
18 authorizing body as possessing all of the following requirements:

19 1. Mobility and accessibility

20 (a) The lift/ramp width shall be thirty inches minimum.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 (b) The design load of the lift/ramp shall be at least six hundred
2 pounds.

3 (c) Controls for the lift/ramp shall be interlocked with the vehicle
4 to ensure that the vehicle cannot be moved while the lift/ramp is in
5 operation.

6 (d) Controls for the lift/ramp shall be of the momentary contact type
7 requiring continuous manual pressure to operate.

8 (e) The lift/ramp shall be equipped with an emergency deployment meth-
9 od in the event of power or mechanical failure.

10 (f) The installation of a lift/ramp shall include provisions to
11 prevent the lift/ramp from falling or folding any faster than twelve
12 inches/second in the event of any failure of the load-carrying compo-
13 nent.

14 (g) The lift/ramp platform shall be equipped with handrails on two
15 sides, a minimum of eight inches long and thirty inches above the plat-
16 form and move in tandem with the lift/ramp.

17 (h) The lift/ramp platform shall have barriers at least two inches or
18 higher to prevent mobility aid wheels from slipping off.

19 (i) Lift/platform surfaces shall be continuous and slip resistant and
20 accommodate four-wheel and three-wheel mobility aids.

21 (j) The transition from roadway or sidewalk and the transition from
22 vehicle floor to the ramp may be vertical without edge treatment up to
23 one-quarter inch.

24 (k) Ramps shall have the least slope practical and may not exceed a
25 one to four ratio when deployed to ground level.

26 (l) The lift/ramp attachment shall be firmly attached to the vehicle
27 so that it is not subject to displacement when loading or unloading a
28 heavy mobility aid and the gap between the vehicle and ramp may not
29 exceed five-eighths of an inch.

30 (m) The lift/ramp shall be usable in all weather conditions.

31 2. Doors, steps and thresholds

32 (a) For vehicles twenty-two feet in length or less, the overhead
33 clearance between the top of the door opening. The raised lift platform
34 or highest point of the ramp shall be a minimum of fifty-nine inches.

35 (b) Vehicle doorways in which a lift/ramp is installed shall have a
36 light above or beside each passenger access door to illuminate the load-
37 ing equipment. Such light shall be constantly lit during the loading or
38 unloading of passengers. The light shall be shielded to protect the eyes
39 of entering and exiting passengers.

40 3. Interior compartment

41 (a) Floor areas where people walk and securement locations shall have
42 slip-resistant surfaces.

43 (b) A minimum clear floor area of thirty inches by forty-eight inches
44 shall be provided for each wheelchair position.

45 (c) Regarding seating configuration, vehicles twenty-two feet in
46 length or less shall provide forward/rear seating only.

47 (d) Ramp stowage shall be accomplished in a manner as not to pose a
48 hazard to passengers or impinge on a passenger's mobility aid.

49 (e) Interior handrails and stanchions shall permit sufficient turning
50 and maneuvering space for mobility aids including wheelchairs to reach
51 securement location from lift/ramp.

52 (f) Handrails and stanchions shall be provided in the entrance to the
53 vehicle in a configuration which allows people to grasp the assists from
54 outside the vehicle while starting to board, and to continue using the
55 assists throughout the boarding process.

56 4. Secure systems

1 (a) A vehicle shall possess a wheelchair securement system that is
2 able to securely anchor the wheelchair into the vehicle, or able to
3 encompass both the occupant and the wheelchair to ensure they are
4 securely anchored into the vehicle.

5 (b) For each mobility aid securement device, a passenger seat belt and
6 shoulder harness shall be provided for use by mobility aid users. Such
7 seat belts shall be in addition to a device which secures the mobility
8 aid itself.

9 (c) Securement systems shall be stowed in a way so as not to pose a
10 hazard to passengers when not in use.

11 § 3. The vehicle and traffic law is amended by adding a new section
12 224-b to read as follows:

13 § 224-b. Wheelchair accessible vehicle availability plan. 1. The
14 commissioner shall create a plan relating to the availability of wheel-
15 chair accessible vehicles in every county of the state outside the city
16 of New York. Each such county shall provide the department with relevant
17 data necessary to complete such plan. The scope of the plan shall
18 include:

19 (a) the number of for-hire operators within each county;
20 (b) the size of the fleet of each for-hire company or operator;
21 (c) the number of wheelchair accessible vehicles in each fleet;
22 (d) the catchment areas of such for-hire companies or operators; and
23 (e) any county policies or laws governing the availability or licens-
24 ing of wheelchair accessible vehicles.

25 2. All information compiled pursuant to this section shall be assem-
26 bled and integrated into a statewide mapping platform to identify areas
27 with insufficient availability of wheelchair accessible vehicles. Such
28 information shall be made publicly available on the department's
29 website.

30 3. Upon completion of the plan, the department, in consultation with
31 the office for people with developmental disabilities and the department
32 of health, shall assess county-level data and establish benchmarks based
33 on United States census bureau American community survey data on ambula-
34 tory disabilities. Such benchmarks shall be included in the plan, along
35 with recommendations for grant programs and tax incentives to encourage
36 engagement in an effort to provide transportation options to expand the
37 availability of wheelchair accessible vehicles. The plan should also
38 include identification of pre-existing fiscal resources which are avail-
39 able to transportation network companies, other for-hire entities, and
40 individuals who possess qualifying wheelchair accessible vehicles.

41 4. If the department determines that a county lacks adequate resources
42 to meet the needs of individuals requiring wheelchair accessible vehi-
43 cles, the department shall, in consultation with: (a) the county or any
44 other relevant governmental entity, (b) transportation network compa-
45 nies, (c) other for-hire entities, and (d) individuals who possess
46 wheelchair accessible vehicles, create a plan to meet the benchmarks
47 established pursuant to subdivision three of this section. The commis-
48 sioner shall then publish the findings, and subsequent plan, on the
49 department's website and provide notice to each affected county.

50 § 4. The closing paragraph of section 151 of the transportation law,
51 as amended by section 8 of part G of chapter 58 of the laws of 2012, is
52 amended and a new subdivision 13 is added to read as follows:

53 13. As a for-hire or livery service, except as specified for wheel-
54 chair accessible vehicles pursuant to section two hundred twenty-four-b
55 of the vehicle and traffic law, which is pursuant to the jurisdiction or
56 regulatory control of a municipality, other than a city with a popu-

1 lation over one million, authorized to adopt an ordinance relating to
2 both registration and licensing pursuant to subdivision one of section
3 one hundred eighty-one of the general municipal law, when such service
4 is available to the general public on a prearranged or demand-response
5 basis over a non-specified or irregular route with the point or points
6 of pick-up and discharge determined by the passenger. For the purpose of
7 this subdivision, wheelchair accessible vehicles shall be defined pursu-
8 ant to section one hundred fifty-nine-b of the vehicle and traffic law.

9 For the purposes of this article, the term "sedan" or "sedans" as used
10 [~~herein~~] in this section shall include private passenger automobiles,
11 but shall not include commercial motor vehicles with a seating capacity
12 of eleven persons or more including the driver, or commercially operated
13 wheelchair accessible vehicles pursuant to subdivision thirteen of this
14 section.

15 § 5. This act shall take effect on the ninetieth day after it shall
16 have become a law.